

	JABATAN PEMBANGUNAN KEMAHIRAN KEMENTERIAN SUMBER MANUSIA ARAS 7 & 8 BLOK D4, KOMPLEK D PUSAT PENTADBIRAN KERAJAAN PERSEKUTUAN 62530 PUTRAJAYA KERTAS PENERANGAN (INFORMATION SHEET)
KOD DAN NAMA PROGRAM / PROGRAM'S CODE AND NAME	Z-009-1:2015 CORE ABILITIES (untuk program IT-072-3:2012 VIDEO / FILM (EDITING))
TAHAP / LEVEL	1 (SATU)
NO. DAN TAJUK KEBOLEHAN TERAS / CORE ABILITY NO. AND TITLE	CA04 KESEDARAN KESIHATAN, KESELAMATAN DAN ALAM SEKITAR (HEALTH, SAFETY AND ENVIRONMENTAL AWARENESS)

TAJUK/TITLE: PERUNTUKAN UTAMA PERUNDANGAN KESELAMATAN DAN KESIHATAN PEKERJAAN (OSH) *(SALIENT PROVISION OF OCCUPATIONAL SAFETY AND HEALTH (OSH) LEGISLATION)*

TUJUAN/PURPOSE:

Kertas Penerangan ini bertujuan menerangkan Peruntukan Utama Perundangan Keselamatan dan Kesihatan Pekerjaan (OSH). Individu yang kompeten dalam CA ini mesti mampu mematuhi peraturan dan undang-undang Kesihatan, Keselamatan dan Alam Sekitar, seterusnya mengurangkan pendedahan kepada bahaya dan risiko serta insiden kecederaan dan penyakit berkaitan kerja.

PENERANGAN/INFORMATION:

1. Kepentingan Pelaksanaan OSH (*Important Of OSH Implementation*)

Pembangunan ekonomi yang pesat bukan sahaja meningkatkan pendapatan dan kualiti hidup, tetapi juga meningkatkan bilangan pekerja yang cedera dan terbunuh di tempat kerja. Statistik PERKESO (SOCESO) menunjukkan sektor pembuatan masih mencatatkan kadar kemalangan pekerja yang tinggi setiap tahun; pada 2013 sahaja PERKESO membayar RM1.7 bilion

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pampasan berbanding RM1.6 bilion pada 2012. Piawaian OSH ialah peraturan mandatori yang ditetapkan untuk menghapus atau mengurangkan bahaya OSH di tempat kerja, bagi memastikan tahap perlindungan minimum kepada setiap pekerja berhubung keadaan kerja dan bahaya kecederaan, penyakit atau kematian akibat pekerjaannya. Antara masalah sebenar yang dikenal pasti pakar OSH ialah kekurangan keprihatinan pihak pengurusan, kekurangan kesedaran dan kakitangan OSH yang terlatih, serta penguatkuasaan piawaian OSH yang lemah.

Konteks studio penyuntingan video: walaupun studio post-production bukan kilang, ia tetap "tempat kerja" di bawah OSHA 1994 — Editor, Director dan Producer terdedah kepada bahaya seperti kecederaan tekanan berulang (RSI) dari kerja tetikus/papan kekunci berjam-jam, bahaya elektrik dari kabel/power strip suite editing, dan tekanan mental akibat *deadline* siaran. Pengurusan studio wajib mengambil serius sama seperti kilang pembuatan.

2. Peruntukan Utama Akta Keselamatan dan Kesihatan Pekerjaan 1994 (*Salient Provision Of Occupational Safety And Health Act 1994*)

2.1 Objektif Akta *(Objective of the Act)*

- a) for securing the safety, health and welfare of persons at work;
- b) protect persons at a place of work other than employees;
- c) promote a suitable environment for persons at work;
- d) enable previous legislation to be replaced by regulations and approved industry codes of practice operating in combination with the OSH Act 1994

2.2 Definisi *(Definition)* (disalin tepat daripada Akta):

- > "employee" - means a person who is employed for wages under a contract of service on or in connection with the work of an industry to which this Act applies and-
 - > (a) who is directly employed by the principal employer on any work of, or incidental or, preliminary to or connected with the work of, the industry, whether such work is done by the employee at the place of work or elsewhere;
 - > (b) who is employed by or through an immediate employer at the place of work of the industry or under the supervision of the principal employer or his agent on work which is ordinarily part of the work of the industry or which is preliminary to the work carried on in or incidental to the purpose of the industry; or
 - > (c) whose services are temporarily lent or let on hire to the principal employer by the person with whom the person whose services are so lent or let on hire has entered into a contract of service;
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- > "employer" - means the immediate employer or the principal employer or both;
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- > "immediate employer" - in relation to employees employed by or through him, means a person who has undertaken the execution at the place of work where the principal employer is carrying on

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his trade, business, profession, vocation, occupation or calling, or under the supervision of the principal employer or his agent, of the whole or any part of any work which is ordinarily part of the work of the trade, business, profession, vocation, occupation or calling of the principal employer or is preliminary to the work carried on in, or incidental to the purpose of, any such trade, business, profession, vocation, occupation or calling, and includes a person by whom the services of an employee who has entered into a contract of service with him are temporarily lent or let on hire to the principal employer.

Konteks studio: seorang *freelance editor* yang dihantar oleh sebuah *outsourcing house* untuk bekerja di dalam suite editing pelanggan adalah "employee" di bawah definisi (b) — majikan sebenar (production house) tetap bertanggungjawab terhadap keselamatannya walaupun bekerja di premis pelanggan.

2.3 Tugas Pekerja *(Duties of employee)*

- a) take reasonable care of his own safety and health and others that may be affected by his actions;
- b) cooperate with his employer to comply by the Act and its regulations;
- c) wear or use protective equipment provided by the employer;
- d) comply with instructions instituted by the employer on occupational safety and health.

Contoh studio: seorang Editor yang mengambil berat keselamatannya sendiri akan melaporkan segera jika kerusi ergonomik suite editing rosak (perkara a), dan mematuhi arahan supaya tidak membiarkan kabel HDMI/kuasa melintasi laluan lalu-lalang staf lain (perkara d).

3. Peruntukan Utama Akta Kilang dan Jentera 1967 (*Salient Provision Of Factories And Machinery Act 1967*)

Seksyen-seksyen berikut disalin tepat daripada Akta:

> **Section 10. Provisions relating to safety, etc.** — (a) foundations and floors shall be of sufficient strength to sustain the loads for which they are designed; and no foundation or floor shall be overloaded; (b) roofs shall be of sufficient strength to carry where necessary suspended loads; (c) all floors, working levels, platforms, decks, stairways, passages, gangways, ladders and steps shall be of safe construction so as to prevent a risk of persons falling...; (d) safe access shall be provided; (e) every opening, sump, pit or fixed vessel in a floor shall be securely covered or fenced; (f) all goods stored or stacked shall be placed to ensure stability and not obstruct passageways or fire-fighting equipment.

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> **Section 15. Dangerous parts of machinery.** Every dangerous part of any machinery shall be securely fenced unless it is as safe as if securely fenced; where fencing cannot secure safety a device shall automatically prevent contact.

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> **Section 20. Duties of persons employed.** (1) No person shall wilfully interfere with or misuse any means, appliance or convenience provided for safety, health or welfare... (2) No person shall wilfully and without reasonable cause act so as to cause bodily injury to himself or others or damage to any machinery or property.

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> **Section 22. Provisions relating to health.** (1)(a) every factory shall be kept clean; (b) maximum persons per workroom limited by prescribed cubic feet and floor area per person; (c) adequate ventilation shall be maintained; (d) reasonable temperature shall be maintained; (e) sufficient lighting shall be provided; (f) sufficient sanitary conveniences shall be provided.

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> **Section 24. Personal protective clothing and appliances.** Where persons are exposed to a wet or dusty process, noise, heat or injurious substance, the Minister may prescribe suitable protective clothing including goggles, gloves, leggings, caps, footwear and protective ointment or lotion.

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> **Section 25. Provisions relating to welfare.** (1)(a) accommodation for clothing not worn during working hours, with drying arrangements; (b) adequate supply of safe drinking water and washing facilities; (c) a first-aid box readily accessible, and a first-aid room where more than 150 persons are employed at any one time.

Nota konteks studio: FMA 1967 ditulis untuk premis kilang fizikal (lantai bertingkat, jentera pemasangan). Studio penyuntingan video tidak mempunyai "jentera berbahaya" seperti pemotong logam, tetapi peruntukan Seksyen 22 (pencahayaannya, pengudaraan, suhu) dan Seksyen 25 (kemudahan asas) tetap terpakai kepada bilik suite editing — pencahayaannya mesti mencukupi untuk mengelak tekanan mata semasa color-grading, dan pengudaraan mesti baik kerana server/storan HDD menjana haba berterusan.

SOALAN/QUESTION:

1. Kenapa keselamatan dan kesihatan penting kepada pekerja?

Jawapan model: Kerana ia mengurangkan pendedahan kepada bahaya dan risiko di tempat kerja (termasuk suite editing), mengelakkan kecederaan berkaitan kerja seperti kecederaan tekanan berulang (RSI) akibat penggunaan tetikus/papan kekunci berjam-jam, dan memastikan kesejahteraan pekerja secara berterusan.

2. Namakan empat tugas pekerja di tempat kerja seperti termaktub dalam Akta OSHA 1994.

Jawapan model: (a) mengambil berat keselamatan dan kesihatan diri sendiri dan orang lain; (b) bekerjasama dengan majikan mematuhi Akta dan peraturannya; (c) memakai/menggunakan peralatan perlindungan yang disediakan majikan (contoh: sarung tangan anti-statik semasa mengendalikan storan HDD sensitif); (d) mematuhi arahan majikan berkaitan keselamatan dan kesihatan pekerjaan.

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3. Apakah Akta selain Akta OSHA yang meliputi keselamatan dan kesihatan di tempat kerja?

Jawapan model: Akta Kilang dan Jentera (Factories and Machinery Act) 1967 — peruntukan Seksyen 22 dan 25 mengenai pencahayaan, pengudaraan dan kemudahan asas tetap terpakai kepada premis studio editing.

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